

Court No. - 21

Case :- WRIT - C No. - 1201 of 2023

Petitioner :- Surendra Kumar Khanna

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mohd. Azam

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

Counsel for the petitioner has not served the counsel representing respondent no. 2 before this Court.

A weeks' time is allowed to serve the counsel representing respondent no. 2 and to submit receipt in the office so that the name of the counsel on whom notice is served is printed in the cause list.

List as fresh on 25.1.2023.

(Ajit Singh, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.1.2023

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Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mohd. Azam

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has challenged the demand notice dated 26.07.2022 issued by the Executive Engineer, Vidyut Vitaran Khand First (Pashimachal Vidhut Vitran Nigam) Rampur, for recovery of a sum of Rs. 1,48,088/- from the petitioner in a case of theft of electricity.

The petitioner is stated to have filed objection against the same on 10.08.2022 and prays that the same be directed to be decided.

Sri Pranjal Mehrotra, learned counsel for the respondents states that before proceeding to recover the amount, respondent No. 2 will decide the objections by following the procedure prescribed under the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of by providing that the objections filed by the petitioner shall be decided by respondent No. 2, in accordance with law before proceeding to recover any amount from him.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

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